

To all National Spiritual Assemblies

2000-11-26 • UHG • Nationale Geistige Räte

THE UNIVERSAL HOUSE OF JUSTICE

2000-11-26

To all National Spiritual Assemblies

dear bahá'í friends,

on 25 march 1987 you were sent a document titled “A codification of the law of ḥuqúqu'lláh,” prepared by the research department at the bahá'í world center; this document is cross-referenced to the compilation “ḥuqúqu'lláh, The right of god.”³⁴⁵⁻¹ At the request of the universal house of justice the codification has recently been revised, to incorporate points made in certain of the quotations provided in the supplement to the compilation that was issued on 12 october 1992.

we now enclose a copy of the new revision of the codification for circulation to the friends, to further assist in deepening their understanding of the law of ḥuqúqu'lláh.

with loving bahá'í greetings,

Department of the secretariat

A CODIFICATION OF THE LAW OF ḤUQÚQU'LLÁH

prepared by the research department

of the bahá'í world center in 1987,

and revised in 1999, at the request of the universal house of justice

Preamble

ḥuqúqu'lláh (The right of god) is a great law (7)³⁴⁵⁻² and a sacred institution (72).³⁴⁵⁻³ laid down in the most holy book (the kitáb-i-Aqdas), it is one of the key instruments for constructing the foundation and supporting the structure of the world order of bahá'u'lláh. it has far-reaching ramifications.³⁴⁵⁻¹ The referenced compilation on ḥuqúqu'lláh was released on 4 july 1985, and a new compilation entitled “ḥuqúqu'lláh: The right of god” was issued by the universal house of justice in April 2007 .

345-2. The numbers in parentheses refer to the paragraphs of the compilation on *ḥuqúqu'lláh* issued by the universal house of justice.

345-3. reference to the extract number in parentheses has been removed from the first sentence in the 2007 revision to the codification.^{345.1}

345.2

345.3

2000–2001 • The Twelfth Plan

75ifications that extend from promoting the welfare of the individual to buttressing the authority and extending the activity of the head of the faith, in providing a regular and systematic source of revenue for the central institution of the cause, *bahá'u'lláh* has assured the means for the independence and decisive functioning of the world center of his faith.

by identifying this law as “The right of god,” *bahá'u'lláh* has reem-

phasized the nature of the relationship between human beings and their creator as a covenant based on mutual assurances and obligations; and, by

designating the central Authority in the cause, to which all must turn, as

the recipient of this right, he has created a direct and vital link between

every individual believer and the head of his faith that is unique in the

structure of his world order. This law enables the friends to recognize the

elevation of their economic activity to the level of divine acceptability; it is

a means for the purification of their wealth and a magnet attracting divine

blessings. The computation and the payment of *ḥuqúqu'lláh*, within the

general guidelines set forth, are exclusively a matter of conscience between the individual and god (8, 104); demanding or soliciting the *ḥuqúqu'lláh*

is prohibited (8, 9, 38, 71, 96, 104): only appeals, reminders and exhortations of a general nature, under the auspices of the institutions of the faith, are permissible (38, 70, 99, 104, 107). That the observance and en-

forcement of this law, so crucial to the material well-being of the emerging

bahá'í commonwealth, should thus have been left entirely to the faith and

conscience of the individual gives substance to, and sheds light on, what the beloved master calls the spiritual solution to economic problems. indeed,

the implications of the law of *ḥuqúqu'lláh* for the realization of a number

of the principles of the faith, such as the elimination of extremes of wealth

and poverty, and a more equitable distribution of resources, will increasingly become manifest as the friends assume in ever greater measure the

responsibility for observing it.

The fundamentals of the law of *ḥuqúqu'lláh* are promulgated in the *kitáb-i-Aqdas*. further elaborations of its features are to be found in other writings of bahá'u'lláh, in Tablets from 'Abdu'l-bahá and in letters from questions raised by the friends. All these major references have been com-

separately published. A study of that compilation makes it clear that the application of the law has been progressive, and will continue to be so, as its ramifications and subsidiary rulings are elucidated.^{345.4}

345.5

message from The Universal House of Justice

756The following is a preliminary attempt at codifying the information in the writings on the subject of *ḥuqúqu'lláh*. it should be emphasized, however, that the friends should not attempt to read into it an element of rigidity or total comprehensiveness. The questions put to bahá'u'lláh, the master and Shoghi effendi were from friends residing in places and times with infinitely simpler economic systems and relationships than those which obtain today. what can be learned from them are clear guiding principles whose application to changing and more complex conditions must be considered. The subject will undoubtedly occupy the universal house of justice in evolving legislation, as necessary, for a long time to come. As

the fourth epoch of the formative Age of our faith unfolds before the

eyes of an increasingly watchful humanity, the universal assumption of the obligation of *ḥuqúqu'lláh* by the friends will be a clear sign of attaining to

a new level of spiritual maturity by the community of the greatest Name

throughout the world.

A Bounty Granted by God

god, while being wholly independent of all created things, has in his bounty given us this law (7, 10, 63), for the progress and promotion of the cause depend on material means (1). obedience to this law enables the believer to be firm and steadfast in the covenant (63), provides a reward in every world of the worlds of god (7), and is a unique test of true faith (62).

The ḥuqúqu'lláh is to be offered joyfully and without hesitation (2, 9, 32). when the ḥuqúqu'lláh is offered in this spirit it will impart prosperity and protection to the friends, purify their worldly possessions (20, 31, 42, 46, 48, 100), and enable them and their offspring to benefit from the fruits of their endeavors (48).

Determining the Ḥuqúqu'lláh

everything that a believer possesses, with the exception of certain specific items, is subject once and only once to the payment of ḥuqúqu'lláh.

A. exempt from assessment to ḥuqúqu'lláh are:

1. The residence and its needful

345-4 furnishings (11).

2. The needful business and agricultural equipment which produce income for one's subsistence (12, 67, 68).

345-4. See iii.c.1.345.6

345.7

345.8

345.9

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757b. payment falls due:

1. ḥuqúqu'lláh is payable as soon as a person's assessable possessions

reach or exceed the value of 19 mithqáls of gold (18, 19, 30). [19

mithqáls equal approximately 2.2 troy ounces, or approximately 69.2 grams (87, 105, 110).]

a) The amount to be paid is 19% of the value of the assessable property (10, 14).

b) The payment is due on whole units of 19 mithqáls of gold (15).

2. ḥuqúqu'lláh is payable on further units of 19 mithqáls of gold

when subsequently acquired possessions, after the deduction of the annual expenses, raise the value of the assessable property sufficiently. Among the expenses to be deducted are:

a) The general expenses of living (65, 66, 69, 78).

b) losses and expenses incurred on the sale of possessions (103).

c) Sums which are paid to the state, such as taxes and

duties (78).

3. when a person receives a gift or bequest it is to be added to his or her possessions and augments the total value in the same way as does an excess of annual income over expenditure (111).

4. if a property increases in value, *ḥuqúqu'lláh* is not payable on that increase until it is realized, e.g., on the sale of the property.

5. if possessions decrease, such as through the expenses of a year exceeding the income received, *ḥuqúqu'lláh* falls due again only

after the loss has been made good and the total value of one's assessable possessions is augmented (15–19, 30, 65–68, 78, 108, 111).

6. The payment of debts takes precedence over the payment of *ḥuqúqu'lláh* (22).

7. The payment of *ḥuqúqu'lláh* is dependent on the person's financial ability to meet his obligations (24).

8. on the death of a believer, the completion of his/her payment of *ḥuqúqu'lláh* is accomplished in the following manner:

a) The first charge on the estate is the expense of burial (22).

b) Secondly, the debts of the deceased must be paid (13).

message from The Universal House of Justice

758c) The *ḥuqúqu'lláh* still due on the property should then

be paid. in establishing the value of the property on

which *ḥuqúq* has not already been paid, the follow-

ing are among the deductions to be made: expenses of

burial (22), debts of the deceased (13), loss of value of the assets when realized (103), and expenses incurred in realizing the assets (103).

c. further notes on determining *ḥuqúqu'lláh*:

1. it is left to the individual to decide which expenses are to be re-

garded as “necessary” and therefore deductible in computing the annual accretion to savings, and which furnishings of the house-

hold are to be regarded as “needful” and therefore exempt from the payment of *ḥuqúqu'lláh* (57, 65–67, 69, 78, 80, 104–106,

112).

2. Although references are made to annual payments of ḥuqúqu'lláh, the time and method of payment are left to the discretion of the individual believer. There is, therefore, no obligation to liquidate one's assets in haste in order to fulfill one's current obligations to ḥuqúqu'lláh (103).
 3. husband and wife are free to decide whether they want to honor their ḥuqúqu'lláh obligations jointly or individually (109, 110).
 4. The account of ḥuqúqu'lláh should be kept separate from other contributions inasmuch as the disposition of the funds of the ḥuqúqu'lláh is subject to decision by the central Authority in the cause to which all must turn, whereas the purposes of the contributions to other funds may be determined by the donors themselves.
 5. payment of the ḥuqúqu'lláh has priority over making contributions to other funds of the faith (78, 79, 97, 100), as well as over the cost of pilgrimage (31). it is, however, left to the discretion of the believer whether or not to treat contributions to the fund as an expense when arriving at the value of his or her property in calculating the sum due to be paid as ḥuqúqu'lláh (105).
- d. Additional notes, based on the first supplement to the compilation:
1. whereas a believer has discretion to decide whether to treat his or her contributions to the funds of the faith as an expense, or make them only out of money on which ḥuqúqu'lláh has been paid, he or she also has the discretion to treat some contributions in one way and some in the other. (Supp. 8)
 2. one believer cannot discharge the obligation of another to pay ḥuqúqu'lláh, nor can a payment to ḥuqúqu'lláh be earmarked for any purpose or be made in honor of anyone. (Supp. 10)
 3. The law of ḥuqúqu'lláh imposes an obligation only on individual believers, not on bahá'í institutions or corporate bodies. (Supp. 11)

4. Although the law provides a certain leeway in the timing of the payment of ḥuqúqu'lláh, it should preferably be paid by a be-

liever during the course of his or her life whenever it falls due, and the only payment to ḥuqúqu'lláh which should need to be

provided for by will is such additional liability as may be found

to exist when the believer's affairs are reckoned up as at the date

of death. (Supp. 12)

5. Each believer should learn not only how to calculate ḥuqúqu'lláh

during the course of his or her life, but also how to provide for the

payment of the balance remaining at the date of death. (Supp. 12)

Applicability of the Law of Ḥuqúqu'lláh

for many decades the sacred law of ḥuqúqu'lláh had been applied only to

the believers from the middle east. The worldwide application was insti-

tuted of the holy year marking the hundredth anniversary of the Ascension of

ḥabá'u'lláh.

Payment of Ḥuqúqu'lláhThe ḥuqúqu'lláh is normally paid to the Trustee of ḥuqúqu'lláh, his depu-

ties, or their appointed representatives (35, 58). These persons issue re-

ceipts and forward the funds to the ḥabá'u'lláh world center (56).

Management of the Ḥuqúqu'lláh

decisions on the necessary ordinances concerning ḥuqúqu'lláh (81, 100),

as well as on its disposition, lie within the sole jurisdiction of the central

Authority in the cause. The ḥuqúqu'lláh can be employed for charitable

purposes (62, 65, 75), or for other purposes useful to the cause of god

(77, 78).345.10

345.11

345.12

Message from The Universal House of Justice

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Message to the ASEAN Youth Conference in Thailand

[signed: The Universal House of Justice]